

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 23, 2026
8:30 a.m./1:30 p.m.

8. MAHCOYA-ROSE OSTROM V. MATTHEW BAKER

26FL0050

On January 27, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. The parties were referred to Child Custody Recommending Counseling (CCRC) and a review hearing was set for the present date.

Because this matter was originally filed ex parte, Respondent filed his Responsive Declaration to Request for Order the same day the RFO was filed, however, he did not use the required FL-320 therefore, this document has not been read or considered.

The parties were originally scheduled to attend CCRC on February 19th, however, due to inclement weather, neither party was able to appear. Accordingly, CCRC was rescheduled for March 26th.

Only Petitioner appeared at the rescheduled CCRC appointment. It is unclear if either parent was properly served with notice of the rescheduled date.

In light of the circumstances, the parties were re-referred to CCRC and a review hearing was set for the present date.

Both parties appeared at the re-set CCRC appointment and were able to reach agreements on all issues. A report codifying their agreements was prepared on May 28, 2026. It was mailed to the parties on May 29th.

Petitioner requests sole legal and sole physical custody of the minor. She asks that the child be immediately returned to her care and for an order precluding the minor from missing school unless there is a medical emergency. Finally, she asks that Respondent be restrained from moving the minor outside of El Dorado County without a written agreement of the parties or a court order.

After reviewing the filings as outlined above, the court finds the agreements contained in the May 28, 2026 CCRC report to be in the best interest of the minor. They are hereby adopted as the orders of the court. In addition to the foregoing, the parties are ordered to ensure that the minor does not miss school unless she is sick or has a valid agreed upon reason for being absent. Neither party may move away with the minor without a written agreement of the parties or prior court order.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

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TENTATIVE RULING #8: THE COURT FINDS THE AGREEMENTS CONTAINED IN THE MAY 28, 2026 CCRC REPORT TO BE IN THE BEST INTEREST OF THE MINOR. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. IN ADDITION TO THE FOREGOING, THE PARTIES ARE ORDERED TO ENSURE THAT THE MINOR DOES NOT MISS SCHOOL UNLESS SHE IS SICK OR HAS A VALID AGREED UPON REASON FOR BEING ABSENT. NEITHER PARTY MAY MOVE AWAY WITH THE MINOR WITHOUT A WRITTEN AGREEMENT OF THE PARTIES OR PRIOR COURT ORDER.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.